TERMS OF USE

DragonPass Terms of Use

1. General

1.1. Welcome to DragonPass International Ltd's ("**DragonPass**") Terms of Use ("**Terms of Use**" or "**Terms**") page.

1.2. The Services (as defined below) are provided by DragonPass International Ltd, located at 173a Ashley Road, Hale, Altrincham, Cheshire, WA15 9SD, United Kingdom.

1.3. When you read these Terms of Use, please note that the terms "**you**", "**your**" and "**User(s)**" refer to the person(s) named on the Card(s). The terms "**we**", "**our**", "**us**" and "**DragonPass**" refer to DragonPass International Ltd and its successors and assigns. If you are the individual requesting us to issue the Card(s) to you, you will be known as the "**DragonPass Member**" and you will have an account with us called the "**Card Account**".

1.4. Please read the Terms of Use set forth hereinbelow, as they apply to your access and use of our services, including our various websites, APIs, email notifications, applications, buttons, and widgets (collectively, the "**Services**"), as well as any information, text, graphics, photographs and any other materials uploaded, downloaded and/or appearing on the Services (collectively referred to as the "**Content**").

1.5. Your access to and use of the Services and/or Content shall signify your acceptance of these Terms of Use and agreement to be bound by them, together with any and all other applicable terms referenced herein. Accordingly, please review them before using any of our Services and/or Content, and in the event that you do not agree with any provision(s) contained therein, please do not use (or please discontinue to use, as the case may be) our Services and/or Content. Take note however that in such an event, no refund of any kind will be provided to you.

2. Other Applicable Terms

2.1. These Terms of Use refer to the additional terms contained in our Privacy Policy Statement, which also apply to your use of the Services.

2.2. Our Privacy Policy Statement sets out the terms on which we process any personal data we collect from you, or that you provide to us. By using our Services, you consent to such processing, and you warrant that all data provided by you is accurate. You understand that through your use of the Services you consent to the collection and use (as set forth in the Privacy Policy) of this information, including the transfer of this information both within and outside of China for storage, processing and use by us. In order to provide the Services to you, we may need to provide you with certain communications from time to time, such as service announcements and administrative messages. These communications are considered to form part of both the Services and your DragonPass account, and accordingly you may not be able to opt-out from receiving them.

3. DragonPass Right to Amend

3.1. DragonPass reserves the right to amend these Terms of Use from time to time in its sole discretion without any notice or liability to you. The updated Terms will be uploaded on the DragonPass website and app and it is your responsibility to check them regularly and ensure that you agree to comply with them.

3.2. You therefore agree to regularly check for updates to these Terms of Use by accessing them at https://dragonpassgo.com/content/term-of-use or via our mobile application.

3.3. If you do not agree with these Terms of Use, you may stop using our Services at any time. Once you continue to use any of our Services, it is implied that you have agreed with all the Terms contained herein.

3.4. For more detailed information regarding our Services, Terms and Privacy Policy, please visit the DragonPass official website: en.dragonpass.com.cn.

4. Changes to Our Services

4.1. The Services that we provide are always evolving, and therefore the form and nature of the Services that we provide may change from time to time without any prior notice to you. In addition, we may stop (permanently or temporarily) providing the Services (or any features within the Services) to you or to users generally and may not be able to provide you with prior notice in such instances. We also retain the right to create limits on use and/or storage at our sole discretion at any time and without prior notice to you.

4.2. We make no representations, warranties or guarantees, whether expressed or implied, that our Services or any content on our site is accurate, complete, up-to-date or free from errors or omissions.

5. Accessing Our Services

5.1. We provide various membership access plans as well as single access passes to our users, the details of which can be found on our website.

5.2. We do not guarantee that our Services, or any content, will always be available or be uninterrupted. Access to our Services is permitted on a temporary basis. We may suspend, withdraw, discontinue or change all or any part of our Services at any time without notice. We will not be liable to you if for any reason our Services are unavailable at any time or for any period.

5.3. You are solely responsible for making all arrangements necessary for you to have access to our Services.

5.4. You are also responsible for ensuring that all persons who access our Services through your internet connection are aware of these Terms of Use, as well as any other applicable terms and conditions, and that they at all times comply with them.

6. Your Account and Password

6.1. You are responsible for safeguarding the password that you use to access the Services and for any activities or actions under your password. We encourage you to use "strong" passwords (i.e., passwords that use a combination of upper and lowercase letters, numbers and symbols) with your account. You must at all times treat such information as confidential. You must not disclose such information to any third party. DragonPass cannot and will not be liable for any loss or damage arising from your failure to comply with the above.

6.2. We have the right to disable any password, whether chosen by you or allocated by us, at any time, if in our reasonable opinion you have failed to comply with any of the provisions of these Terms of Use.

6.3. If you know or suspect that anyone other than you might know your password, you must promptly notify us at enquiries@dragonpassuk.com.

7. Your License to Use the Services

7.1. DragonPass grants to you a personal, worldwide, royalty-free, non-assignable and non-exclusive license to use the mobile application ("**App**") and access our website, which is provided to you by us as part of the Services. This license is for the sole purpose of enabling you to use and enjoy the benefit of the Services as provided by DragonPass, in the manner permitted by these Terms of Use.

8. Our Intellectual Property Rights

8.1. All intellectual property rights subsisting in respect of the Services belong to DragonPass or have been lawfully licensed to DragonPass for use in connection with the Services. All rights under applicable laws are hereby reserved. You are not allowed to upload, post, publish, reproduce, transmit or distribute in any way any component of the website or App itself or create derivative works with respect thereto, as the website and App are copyrighted under applicable laws.

8.2. You agree that we are free to use, disclose, adopt and modify all and any ideas, concepts, knowhow, proposals, suggestions, comments and other communications and information provided by you to us (the "**Feedback**") in connection with the Services and/or your use of the Services without any payment or compensation to you. You hereby waive, and agree to waive, any and all rights and claims for any consideration, fees, royalties, charges and/or other payments in relation to our use, disclosure, adoption and/or modification of any and all of your Feedback.

9. Your Rights

9.1. You retain your rights to any Content that you submit, post or display on or through the Services. By submitting, posting or displaying Content on or through the Services, you grant us a worldwide, non-exclusive, royalty-free license (with the right to sublicense) to use, copy, reproduce, process, adapt, modify, publish, transmit, display and/or distribute such Content in any and all media or distribution methods (now known or later developed).

9.2. You agree that this license includes the right for us to provide, promote, and improve the Services and to make your Content submitted to or through the Services available to other companies, organisations or individuals who partner with DragonPass for the syndication, broadcast, distribution or publication of such Content on other media and/or services, subject to our Terms and Conditions for such Content use.

9.3. Such additional use by DragonPass or other companies, organisations or individuals who partner with DragonPass may be made with no compensation paid to you with respect to the Content that you submit, post, transmit or otherwise make available through the Services.

9.4. We may modify or adapt your Content in our sole discretion in order to transmit, display or distribute it over computer networks and in various media and/or make changes to your Content as may be necessary to conform and adapt such Content to any requirements or limitations of any networks, devices, services or media.

9.5. You are solely responsible for your use of the Services, for any content you provide, and for any consequences arising as a result thereof, including the use of your Content by other users and/or our third party partners. You understand that your Content may be syndicated, broadcast, distributed, or published by our partners and if you do not have the right to submit Content for such use, it may subject you to liability. DragonPass will not be responsible or liable for any use of your Content by DragonPass in accordance with these Terms of Use. You represent and warrant that you have all the rights, powers and authority necessary to grant the rights granted herein in relation to any Content that you submit.

10. Limitation of Liability and Warranty

10.1. Please read this section carefully since it limits the liability of DragonPass and its parents, subsidiaries, affiliates, related companies, officers, directors, employees, agents, representatives, partners, and licensors (collectively, the "**Entities of DragonPass**").

10.2. Each of the subsections below only applies up to the maximum extent permitted under applicable law. Some jurisdictions do not allow the disclaimer of implied warranties or the limitation of liability in contracts, and as a result the contents of this section may not be applicable to you.

10.3. Nothing in this section excludes or limits our liability for death or personal injury arising from our negligence or is intended to limit any rights you may have which may not be lawfully limited.

10.4. All information provided is for your general reference only. We do not accept any responsibility whatsoever in respect of such information.

10.5. Your access to and use of our Services is at your sole risk and is provided on an "**AS IS**" and "**AS AVAILABLE**" basis. The Services are for your personal

use only and the Entities of DragonPass make no representation or warranty of any kind, express or implied, including without limitation any warranties on accuracy, quality, availability, merchantability or fitness for any particular purpose (even if advised in advance of such purpose) or non-infringement.

10.6. The entire liability of the Entities of DragonPass in aggregate, and your exclusive remedy with respect to the Services, associated products, facilities or otherwise, is re-performance of defective Services. In jurisdictions which do not allow the exclusion or limitation of certain types of liability, our liability will be limited to the maximum extent permitted by law. We do not endorse, warrant or guarantee any material, product or service offered through us or our Services. We are not and will not be a party to any transaction between you and any third party.

10.7. Without prejudice and subject to Clause 10.6 (which shall take precedence unless applicable law does not permit its application whether in whole or in part), under no circumstances howsoever arising related to the Services or these Terms of Use, their performance or any omissions, shall the aggregate liability of the Entities of DragonPass exceed one hundred US Dollars (USD 100).

10.8. The Entities of DragonPass shall not guarantee or assume any responsibility that:

10.8.1. The information presented in relation to our Services is accurate, adequate, current, or reliable, or may be used for any purpose other than for general reference;

10.8.2. The information presented in in relation to our Services is free of defect, error, omission, virus or anything which may change, erase, add to, or damage your software, data or equipment;

10.8.3. Messages sent through the internet, including in connection with the Services, will be free from interception, corruption, error, delay, or loss;

10.8.4. Access to the Services will be available or be uninterrupted;

10.8.5. Use of the Services will achieve any particular result; or

10.8.6. Defects in the Services will be corrected.

10.9. Without limiting the generality of the foregoing, in no event will the Entities of DragonPass be liable to you or any other person for any direct, indirect,

incidental, special, punitive or consequential loss or damages, including (but not limited to) any loss of business, profit, data, goodwill or reputation arising out of any use, or inability to use, the information or the Services, even if any of the Entities of DragonPass has been advised of the possibility of such loss or damages.

10.10. You will exercise and rely solely on your own skill and judgment in your use and interpretation of the information and use of the Services. You are responsible to ensure that your use of the information and the Services at all times complies with all applicable legal requirements.

10.11. Without prejudice to the foregoing, if your use of the Services does not proceed satisfactorily and/or where applicable you do not receive appropriate responses to such use from us, as set out in these Terms of Use or otherwise, you are advised to contact us at enquiries@dragonpassuk.com. No lack of response by us shall be deemed to constitute any acquiescence or waiver.

10.12. The limitation of liability contained in these Terms of Use will apply to the fullest extent permitted by applicable laws.

11. Content on the Services

11.1. All Content, whether publicly posted or privately transmitted, is the sole responsibility of the person who originated such Content.

11.2. You warrant that any such contribution of Content from you at all times complies with all relevant provisions hereunder these Terms of Use (including without limitation the requirements as set forth under Section 9), and you will be liable to us and indemnify us for any breach of such warranty and you will be responsible for any loss and/or damage suffered by us as a result of your breach of any provisions hereunder these Terms of Use.

11.3. Any Content you upload to our website or App will be considered non-confidential and non-proprietary, and we have the right to use, copy, distribute and disclose to third parties any such Content for any purpose. We also have the right to disclose your identity to any third party who is claiming that any Content posted or uploaded by you to our site constitutes a violation of their intellectual property rights, or of their right to privacy. We will not be responsible, or liable to any third party, for the content or accuracy of any Content posted by you or any other user of our site.

11.4. The views expressed by other users on our site do not represent our views or values. We maintain the right, in our sole discretion, to remove without any notice or liability to you any posting you make on our website or App if, in our opinion, your post does not comply with our Content standards or requirements. We do not endorse, support, represent or guarantee the completeness, truthfulness, accuracy, or reliability of any Content or communications posted via the Services or endorse any opinions expressed via the Services. You understand that by using the Services, you may be exposed to Content that might be offensive, harmful, inaccurate or otherwise inappropriate, or in some cases, postings that have been mislabelled or are otherwise deceptive.

11.5. Under no circumstances will we be liable in any way for any Content, including, but not limited to, any errors or omissions in any Content, or any loss or damage of any kind, incurred directly or indirectly as a result of the use of the Services by any third party, including without limitation any defamatory, offensive, or illegal conduct of a third party, or the use of any Content posted, emailed, transmitted, or otherwise made available via the Services or broadcast elsewhere.

11.6. We may not monitor or control the Content posted via the Services and, we cannot take responsibility for such Content. Any use or reliance on any Content or materials posted via the Services or obtained by you through the Services is entirely at your own risk.

12. Content Copyright Policy

12.1. DragonPass respects the intellectual property rights of others and expects users of the Services to do the same. We will respond to notices of alleged copyright infringement that comply with applicable law and are properly provided to us. If you believe that your Content has been copied in a way that constitutes copyright infringement, please provide us with the following information: (i) a physical or electronic signature of the copyright owner or a person authorised to act on their behalf; (ii) identification of the copyrighted work claimed to have been infringed; (iii) identification of the material that is claimed to be infringing or to be the subject of infringing activity and that is to be removed or access to which is to be disabled, and information reasonably sufficient to permit us to locate the material; (iv) your contact information, including your address, telephone number, and an email address; (v) a statement by you that you have a good faith belief that use of the material in the manner complained of is not authorised by the copyright owner, its agent, or the law; and (vi) a statement that the information in the notification

is accurate, and that you are authorised to act on behalf of the copyright owner.

12.2. We reserve the right to remove any Content alleged to be infringing without prior notice, at our sole discretion, and without liability to you. In appropriate circumstances, we will also terminate a user's account if the user is determined to be a repeat infringer. To provide us with notice of alleged copyright infringement appearing on the Services, please email enquiries@dragonpassuk.com.

13. Use of the Services

13.1. We reserve the right at all times (but do not have an obligation) to remove or refuse to distribute any Content on the Services, to suspend or terminate users, and to reclaim usernames without liability to you. We also reserve the right to access, read, preserve, and disclose any information as we reasonably believe may be necessary to (i) satisfy any applicable law, regulation, legal process or governmental request, (ii) enforce the Terms of Use, including investigation of potential violations hereof, (iii) detect, prevent, or otherwise address fraud, security or technical issues, (iv) respond to user support requests, or (v) protect the rights, property or safety of DragonPass its users and the public.

13.2. You are solely responsible for configuring your information technology, mobile phones, tablets, computer, devices, settings, computer programmes and platform in order to access our Services, App or website. We cannot guarantee that our Services will be free from the risk of bugs or viruses. You should use your own virus protection software and we will not be howsoever liable in the event that any of your devices or platforms become infected and/or you lose any data as a result of your access to (or attempting to access) any of our Services. In addition, we reserve the right to deny access to our Services at any time without any liability whatsoever to you, and without any prior notice or reference to you, in the event that we deem (in our sole discretion) that you are accessing our Services in a manner or from a device that may present potential security or technical issues to any of our systems related to the Services, and/or are incompatible with the configuration of our Services, such incompatibility to include without limitation rooted phones and jailbroken iOS. No extension of your membership period, refund or compensation of any kind will be provided to you in the event that your access to our Services is denied due to the foregoing.

13.3. You may not do any of the following while accessing or using the Services: (i) access, tamper with, or use non-public areas of the Services, DragonPass's computer systems, or the technical delivery systems of DragonPass's providers; (ii) probe, scan, or test the vulnerability of any system or network or breach or circumvent any security or authentication measures, or attempt any of the foregoing; (iii) access or search or attempt to access or search the Services by any means (automated or otherwise) other than through our currently available, published interfaces that are provided by us (and only pursuant to those terms and conditions); (iv) scraping the Services without our prior written consent; (v) forge any TCP/IP packet header or any part of the header information in any email or posting, or in any way use the Services to send altered, deceptive or false source-identifying information; or (vi) interfere with, or disrupt, (or attempt to do so), the access of any user, host or network, including, without limitation, sending a virus, trojan, worm, logic bomb or other material which is malicious or technologically harmful, overloading, flooding, spamming, mail-bombing the Services, or by scripting the creation of Content in such a manner as to interfere with or create an undue burden on the Services.

13.4. We will report any breach of Clause 13.3 to the relevant law enforcement authorities and we will co-operate with those authorities by disclosing your identity and any relevant information to them. In the event of such a breach, your right to use our Services will cease immediately.

14. Linking to Us

14.1. You may link to our Services provided you do so in a way that is fair and legal and does not damage our reputation or take advantage of it in any way. You must not establish a link in such a way as to suggest any form of association, approval or endorsement on our part where none exists. You must not establish a link to our Services in any website that is not owned by you. We reserve the right to withdraw this linking permission without any notice.

15. Third Party Links and Resources in Our Site

15.1. The links from the Services may take you to other sites or services and you acknowledge and agree that DragonPass has no responsibility for the accuracy or availability of any Information provided by third parties' services and/or websites.

15.2. The Services may include advertisements, which may be targeted to the Content or information on the Services, queries made through the Services,

or other information. The types and extent of advertising by DragonPass on the Services are subject to change. In consideration for us granting you access to and use of the Services, you agree that DragonPass and its third party providers and partners may place such advertising on the Services or in connection with the display of Content or information from the Services whether submitted by you or others.

15.3. Links to other websites and/or services do not constitute an endorsement by us of such websites or services, or the information, products, advertising or other materials made available by such third parties.

16. Indemnity

16.1. You agree to defend, indemnify and hold us harmless from and against all liabilities, damages, claims, actions, costs and expenses (including without limitation legal fees on a solicitor-client basis), in connection with or arising from your breach of any of these Terms of Use and/or your use of the website or App.

16.2. We may, if necessary, participate in the defence of any claim or action and any negotiations for settlement. No settlement which may adversely affect our rights or obligations shall be made without our prior written approval. We reserve the right, at our own expense and on notice to you, to assume exclusive defence and control of any claim or action.

17. Severability

17.1. The illegality, invalidity or unenforceability of any provision of these Terms of Use under the law of any jurisdiction shall not affect its legality, validity or enforceability under the laws of any other jurisdiction nor the legality, validity or enforceability of any other provision.

18. Several Users

18.1. If there are 2 (two) or more persons adhering to these Terms of Use as user, their liability under the Terms of Use shall be joint and several, and their rights shall be joint.

19. Waiver

19.1. No failure or delay by a party to exercise any right or remedy provided under these Terms of Use or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or

any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.

20. Termination

20.1. The Terms of Use will continue to apply until terminated by either you or us as follows.

20.2. You may end your agreement with us at any time for any reason by deactivating your accounts and discontinuing your use of the Services. You do not need to specifically inform us when you stop using the Services.

20.3. We may suspend or terminate your accounts or cease providing you with all or part of the Services at any time for any reason, including, but not limited to, if we reasonably believe: (i) you have violated these Terms of Use or (ii) you create risk or possible legal exposure for us; or (iii) our provision of the Services to you is no longer commercially viable. We will make reasonable efforts to notify you via the email address associated with your account or the next time you attempt to access your account.

20.4. In all such cases, any provision of these Terms of Use that expressly or by implication is intended to come into or continue in force on or after termination of this Agreement shall remain in full force and effect.

20.5. Nothing in this section shall affect our rights to change, limit or stop the provision of the Services without prior notice, as provided above in Clause 4.

21. Governing Law and Jurisdiction

21.1. These Terms of Use shall be governed by the law of England and Wales and accordingly you agree to submit to the exclusive jurisdiction of the Courts of England and Wales.

22. Prevailing Language

22.1. These Terms of Use are drafted in the English language. If these Terms of Use are translated into any other language, the English language version shall at all times prevail.

Last updated: 29/04/2025